DAN REGARD

Founder and CEO



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Mr. Regard is an electronic discovery and computer science consultant, with extensive experience consulting for legal and corporate entities since the early 1990s. A programmer and an attorney by training, Mr. Regard has conducted system investigations, created data collections, and managed discovery on over a thousand matters. He is responsible for the development and implementation of case and matter strategies that leverage technology in litigation and investigations. Mr. Regard has both national and international experience advising on such issues as electronic discovery, computer forensics, structured data, and information management. He is a frequent speaker, teacher, and publisher on issues of electronic discovery.

Prior to founding iDiscovery Solutions, Inc. in 2008, Mr. Regard was the national director of e-Discovery for LECG. He was also the national director of Electronic Evidence & Consulting for FTI Consulting and was an electronic discovery and data analytics team leader in Analytical Dispute Services at Deloitte & Touche, where he managed multi-national, multi-jurisdictional, and multi-counsel litigation support projects. He began his career as the founder of a nationwide litigation-technology company.

Mr. Regard is a member of the Sedona Conference WG1: Electronic Document Retention and Production, and WG6: International Electronic Information Management, Discovery and Disclosure. He is a board member of Georgetown Advanced Institute for e-Discovery, one of the original four founders of the EDiscovery Institute (EDI), and a founding member of the Masters Cabinet. Mr. Regard is the founder of b-Discovery, a monthly e-Discovery networking group that meets throughout the United States.

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SELECT COMPUTER FORENSIC EXPERIENCE

- In the *international consumer electronics* industry, analyzed dozens of computers and databases related to e-tail marketing of counterfeit goods.
- In the *military armor* industry, analyzed computers, removable devices, and emails related to theft of intellectual property.
- In *trucking and transportation,* conducted a search and destroy mission to eradicate U.S. military grade design documents from European-based engineering offices.
- In the *financial sector,* conducted an in-depth analysis of Microsoft Exchange email and Bloomberg chat messages.
- In *medical device* industry, testified on the definition, content and functionality of "native format" for emails and other user documents.
- In the *insurance industry,* analyzed and testified on metadata artifacts related to water remediation cost estimate files.
- Before the *international trade commission,* located, traced, and remediated the disclosure of privileged documents via FTP configurations and Internet search bots.

EDUCATION

- BS in Computer Science, University of Southwestern Louisiana
- JD, Tulane University
- MBA, Tulane University
- Certificate in European Legal Practice, Tulane University

PUBLICATIONS (Past 10 Years)

1. D. Regard, *The Rising Challenge of Deepfakes and Shallow Fakes in Litigation,* Today's Managing Partner (April 25, 2025).
2. D. Regard, *The Evolution of Evidence: From Testimony to System-Generated Data,* Today's Managing Partner, (March 21, 2025).
3. D. Regard, The Federal Judges' Guide to Discovery (4th ed.), *Database Discovery,* Electronic Discovery Institute, February 2025.
4. D. Regard, The Federal Judges' Guide to Discovery (4th ed.), *Mobile Forensics,* Electronic Discovery Institute, February 2025.
5. *Fact Crashing*, Data Analysis in E-Discovery, self-published, October 2022.
6. D. Regard, *Mobile Devices*, in Hon. Xavier Rodriguez et al., Essentials of E-Discovery (Texas State Bar Assn., 2021).
7. D. Regard, Published Interview, *Taking Advantage of an Emergent New Area of Evidence*, Corporate Counsel Business Journal. (March-April 2020).
8. D. Regard, *The Internet of Things Brings Risks and Rewards: A network of devices emitting massive amounts of data provides answers – and raises ethical concerns*, Metropolitan

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Corporate Counsel, Interview (June 21, 2016).

9. D. Regard, *The Apple, the Fall and the Exile: The International Effect of Hacking One iPhone*, Digital Discovery and E-Evidence (BNA, March, 2016) (http://www.bna.com/apple-fall-exile-n57982068332/)
10. D. Regard, T. Irgang, *Will Apple give in to FBI demands to hack into a San Bernardino shooter's phone?* SmartCEO, Interview (Feb. 2016).
11. D. Regard, *The FBI's Battle with Apple over the San Bernardino iPhone: The agency's request from the technology giant could have long-reaching implications*, Metropolitan Corporate Counsel, Interview (Feb. 2016).
12. D. Regard, C. Platt, *A Brief Legal History of Time: Part Two of Two*, Digital Discovery and E-Evidence (BNA, February 2016).
13. D. Regard, C. Platt, *A Brief Legal History of Time: Part One of Two*, Digital Discovery and E-Evidence (BNA, January 2016).
14. D. Regard et al, The Federal Judges' Guide to Discovery (2nd ed.), *Format of Discovery*, Electronic Discovery Institute (Jan. 2016).
15. D. Regard, *Proportionality, FRCP Changes and the Perspective of a Litigation Technologist*, Metropolitan Corporate Counsel, Interview (Dec. 2015).
16. D. Regard, *The Real Problem: Technology*, Metropolitan Corporate Counsel (Dec. 2015).
17. D. Regard et al, The Duke Law Center Proportionality Guidelines, Guidelines and Practices for Implementing the 2015 Discovery Amendments to Achieve Proportionality, Judicature (2015).
18. D. Regard & Hon. R. Hedges (Ret.), *Application of Search Analytics in the Healthcare Profession*, Journal of AHIMA (May 2015).
19. D. Regard & K. Shuart, *Consensus Coding: A Game Changer for Human Review*, Metropolitan Corporate Counsel (Jan. 2015).

SPECIAL MASTER and COURT APPOINTED NEUTRAL EXPERIENCE

1. Court Appointed Neutral, software code analysis, *Bold LLC claimant, and Rocket Resume, Inc., and Stephen Zimmerman, respondents*. JAMS Arbitration Case Reference No. 5425001441, 2024.
2. Party Appointed Neutral, forensic inspection and data remediation, *Confidential Arbitra-tion*, 2024.
3. Court Appointed Neutral, Digital Forensics and Email Authentication, *Kalamas v. John Muir Health et al.,* Superior Court of the State of California County of Contra Costa, Case No. C22-00088, 2023.
4. Special Master of ESI Discovery, E-Discovery, *In Re: Generic Pharmaceuticals Pricing Anti-trust Litigation (MDL 2724),* 2:16-md-02724-CMR, Eastern District of Pennsylvania, 2019.
5. Neutral Application Data Examiner, *Joseph Strauch and Timothy Colby et al. on behalf of other similarly situated individuals v. Computer Sciences Corporation,* U.S.

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District Court for the District of Connecticut, USDC Civil No. 3:14-cv-00956 (JBA), 2019. Appointed by the Court at the nomination of the Plaintiff, later, served as Plaintiff's expert.

6. Neutral Forensic Examiner, *Yahoo! Inc. Customer Data Security Breach Litigation,* Superior Court of the State of California for the County of Orange, No. 16-MD-02752-LHK, 2018.
7. Court Appointed Expert, *Abilify (Aripiprazole) Products Liability Litigation,* U.S. District Court for The Northern District of Florida, Pensacola Division, Case No. 3:16-MD-2734, 2017.
8. Independent Expert, *Klipsch Group, Inc., v. Big Box Limited et al.,* US District Court, South-ern District of New York, Case No. 12-CIV-6283 (VSB) (MHD), March 2014.
9. E-Discovery Neutral, *Legg v. American Eagle Outfitters, Inc.,* U.S. District Court, Southern District of Florida, Case No. 0:14-cv-61058-BB, 2014.
10. E-Discovery Special Master, *Federal Trade Commission v. Boehringer Ingelheim Pharmaceuticals, Inc.,* U.S. District Court, District of Columbia, 2010-2011.

TESTIFYING EXPERIENCE (Past 10 Years)

1. Email Authenticity, expert report, *WIN Partners, LLC v. World Tech Toys, Inc. et al.,* Superior Court of the State of California for the County of Los Angeles, Case No. 21CHCV00423, May 2025.
2. Analysis of Production Deficiencies and Technology Assisted Review (TAR), 3nd report, *BCBSM Inc., et al. vs. Walgreen Co., et al.,* U.S. District Court N.D. Illinois, Eastern Div., Case No. 1:20-cv-01853, May 2025.
3. Analysis of Text Message Productions from iMazing, report, *Aleardi, et al. v. Rothman National Management Services Organization, LLC et al.,* United States District Court Eastern District of Pennsylvania, CASE NO. 2:23-cv-00734-JHS, May 2025.
4. Analysis of Production Deficiencies and Technology Assisted Review (TAR), 2nd report, *BCBSM Inc., et al. vs. Walgreen Co.,* et al., U.S. District Court N.D. Illinois, Eastern Div., Case No. 1:20-cv-01853, April 2025.
5. Analysis of Data Productions from Teams, Outlook, Dashboards, and Emergency Operations Center Incident Action Plans, declaration, *S. Abdelghany et al., v. Southern California Edison Company, et al.,* Superior Court of California, County of Orange, CASE NO. 30-2021- 01195715-CU-MT-CXC, April 2025.
6. Analysis of Data Productions from Teams, Outlook, Dashboards, and Emergency Operations Center Incident Action Plans, declaration, *S. Abdelghany et al., v. Southern California Edison Company, et al.,* Superior Court of California, County of Orange, CASE NO. 30-2021- 01195715-CU-MT-CXC, March 2025.
7. Analysis of Data Productions from Teams, Outlook, Dashboards, and Emergency Operations Center Incident Action Plans, declaration, *S. Abdelghany et al., v. Southern California Edison Company, et al.,* Superior Court of California, County of Orange, CASE

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NO. 30-2021-01195715-CU-MT-CXC, February 2025.

8. Analysis of Historical Banking Archives and Tapes in COBOL and Oracle, response declaration, *Singer et al. v. Bank of Palestine,* U.S. District Court EDNY, No. 19-cv-0006 (ENV)(RML), February 2025.
9. Analysis of Production Deficiencies and Technology Assisted Review (TAR), declaration, *BCBSM Inc., et al. vs. Walgreen Co.,* et al., U.S. District Court N.D. Illinois, Eastern Div., Case No. 1:20-cv-01853, February 2025.
10. Analysis of Historical Banking Archives and Tapes in COBOL and Oracle, reply declaration, *Singer et al. v. Bank of Palestine,* U.S. District Court EDNY, No. 19-cv-0006 (ENV)(RML), December, 2024.
11. Data analysis for Wage and Hour, declaration, *O'Reilly et al., v. CAE Integrated, LLC, and Ryan F. Jacob,* U.S. Dist. Court W.D. Tx., Civil Action No. 1:21-CV-348-DAE, November 2024.
12. Search Terms and Data Availability, deposition, *Aliff v. California Fair Plan Assoc., et al.,* Superior Court of the State of California, County of Los Angeles, Case No. 21STCV20095, October, 2024.
13. Search Terms and Data Availability, declaration, *Aliff v. California Fair Plan Assoc., et al.,* Superior Court of the State of California, County of Los Angeles, Case No. 21STCV20095, August 2024.
14. Device Forensics, declaration related to spoliation, *SageWater v. David Hossfeld,* U.S. Dist. Court E.D. Va., Civil Action No. 1:23-cv-0770, July 2024.
15. Proportionality of Discovery, declaration, *Fullbright v. Greyhound Lines, Inc., et al.,* Superior Court of the State of California, County of Sacramento, Case No. 23CV002186, July 2024.
16. Device Forensics, deposition, *SageWater v. David Hossfeld,* U.S. Dist. Court E.D. Va., Civil Action No. 1:23-cv-0770, June 2024.
17. Document Forensics, declaration, *Anderson & Anderson v. U.S. Bank National Assoc., Through Its Parent U.S. Bancorp and USAA Federal Savings Bank,* 40th Judicial Dist. Ct. for the Parish of St. John the Baptist, State of Louisiana, No: 75720, Div. "C", June 2024.
18. Device Forensics, declaration, *SageWater v. David Hossfeld,* U.S. Dist. Court E.D. Va., Civil Action No. 1:23-cv-0770, April 2024.
19. Device Forensics, declaration, *SageWater v. David Hossfeld,* U.S. Dist. Court E.D. Va., Civil Action No. 1:23-cv-0770, April 2024.
20. Data analysis for Wage and Hour, declaration, *O'Reilly et al., v. CAE Integrated, LLC, and Ryan F. Jacob,* U.S. Dist. Court W.D. Tx., Civil Action No. 1:21-CV-348-DAE, March 2024.
21. E-Mail Analysis, declaration, S*hijiazhuang Hongray Group v. World Trading 23 Inc. and World Tech Toys,* United States District Court for the Central District of California Eastern Division, Case No.: 5:21-cv-00972, November 2023.
22. Spoliation, declaration, N.T.A.A. (NO Talk All Action) Inc., Ryan Robinson vs. Nordstrom, Inc., Nike Inc, U.S. Dist. Court C.D. Ca., Case No. 2:21-cv-00398, August 2023.



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23. Device Forensics, declaration for MSJ, *SageWater v. David Hossfeld,* U.S. Dist. Court E.D. Va., Civil Action No. 1:23-cv-0770, August 2023.
24. PDF Signature Authentication, trial testimony, *Laba v. JBO Worldwide Supply Pty Ltd.,* US. District Court S. D. N. Y., Case No: 1:20-cv-03443-AKH, June 2023.
25. Email Metadata, trial testimony, *Deccan Value LLC, et al. v. Malik v. Bodas,* Superior Court of Stamford CT, Docket No. FST-CV-21-6052725-S, May 2023.
26. E-Mail Analysis, Barcode Analysis, deposition, *Shijiazhuang Hongray Group v. World Trading 23 Inc. and World Tech Toys,* United States District Court for the Central District of California Eastern Division, Case No.: 5:21-cv-00972, May 2023.
27. Intellectual Property Forensics Analysis, trial testimony, *Philips Medical Systems, et al. v TEC Holdings, Inc., et al.,* W.D.N.C., Case 3:0-cv-00021-MOC-DCK, April 2023.
28. iPhone Text Message Forensics, declaration, *Fedorka and Fedorka v. UPMC et al., Luketich v. D'Cunha and Shaheen,* Court of Common Pleas of Alleghany County, Pennsylvania, Civil Division No. 18-017177, March 2023.
29. Text Message Forensics, declaration, *State of Hawai'I v. Curtis Ryan Beekum,* March 2023.
30. E-Mail Analysis, Barcode Analysis, declaration, *Shijiazhuang Hongray Group v. World Trading 23 Inc. and World Tech Toys,* United States District Court for the Central District of California Eastern Division, Case No.: 5:21-cv-00972, January 2023.
31. Data preservation analysis (iPhone, Samsung, Motorola, TracFone), testimony, *Jane Doe v. Willis et al.,* U.S. Dist. Court M. D. Fl., Tampa Division, Civil Action No. 8:21-CV-01576-VMC-CPT, January 2023.
32. Data analysis for Wage and Hour, deposition, *O'Reilly et al., v. CAE Integrated, LLC, and Ryan F. Jacob,* U.S. Dist. Court W.D. Tx., Civil Action No. 1:21-CV-348-DAE, December 2022.
33. Digital forensics, deposition, *Thor Equities, LLC v. Scheinberg et al.,* Circuit Court for Montgomery County, MD, Civil No. 485298-V, November 2022.
34. Data analysis for Wage and Hour, declaration, *O'Reilly et al., v. CAE Integrated, LLC, and Ryan F. Jacob*, U.S. Dist. Court W.D. Tx., Civil Action No. 1:21-CV-348-DAE, November 2022.
35. Digital signature verification (Adobe Sign), hearing testimony, *Rhythm Management Group Corp. v. Daniel Heaton*, Circuit Court of Maryland for Montgomery County, Case No.: C-15-CV-22-003342, October 2022.
36. Data preservation analysis (iPhone, Samsung, Motorola, TracFone), declaration, *Jane Doe v. Murray Willis et al.*, U.S. Dist. Court M. D. Fl., Tampa Division, Civil Action No. 8:21-CV-01576-VMC-CPT, October 2022.
37. PDF Signature Authentication, 3rd declaration, *Laba v. JBO Worldwide Supply Pty Ltd.*, US. District Court S. D. N. Y., Case No: 1:20-cv-03443-AKH, October 2022.
38. PDF Signature Authentication, 2nd declaration, *Laba v. JBO Worldwide Supply Pty Ltd.*, US. District Court S. D. N. Y., Case No: 1:20-cv-03443-AKH, September 2022.
39. PDF Signature Authentication, declaration, *Laba v. JBO Worldwide Supply Pty Ltd.*, US.

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District Court S. D. N. Y., Case No: 1:20-cv-03443-AKH, September 2022.

40. iPhone Text Message Forensics, declaration, *Fedorka and Fedorka v. UPMC et al., Luketich v. D'Cunha and Schaheen*, Court of Common Pleas of Alleghany County, Pennsylvania, Civil Division No. 18-017177, August 2022.

41. Forensic Analysis of IP Exfiltration, trial testimony, *KeyBank National Association v. Williams and Weldon*, U.S. District Court for the District of Colorado, Civil Action No. 1:19-cv-03714-CMA, August 2022.

42. Intellectual Property Forensics Analysis, reply declaration, *Philips North America LLC v. Martin Little*, E.D.N.C., Case 5:20-CV-00657-BO, May 2022.

43. Data Recovery from Backup Tapes, reply declaration, *Singer et al. v. Bank of Palestine*, U.S. District Court EDNY, No. 19-cv-0006 (ENV)(RML), May 2022.

44. Data Recovery from Backup Tapes, declaration, *Singer et al. v. Bank of Palestine*, U.S. District Court EDNY, No. 19-cv-0006 (ENV)(RML), April 2022.

45. Intellectual Property Forensics Analysis, declaration, *Philips North America LLC v. Martin Little*, E.D.N.C., Case 5:20-CV-00657-BO, March 2022.

46. Data Availability, deposition, *MSP Recovery Claims, et al., v. Tower Hill Preferred Insurance Company, et al.*, ("Tower Hill II") N.D. Fla., Gainesville Division, Case no. 1:18-cv-00157, February 2022.

47. Forensic Analysis of IP Exfiltration, deposition, *KeyBank National Association v. Williams and Weldon*, U.S. District Court for the District of Colorado, Civil Action No. 1:19-cv-03714-CMA, February 2022.

48. Data Availability, declaration, *MSP Recovery Claims, et al., v. Tower Hill Preferred Insurance Company, et al.*, ("Tower Hill II") N.D. Fla., Gainesville Division, Case no. 1:18-cv-00157, January 2022.

49. Data Availability, deposition, *MSP Recovery Claims Series LLC et al. v Integon National Insurance Co. et al.*, U.S. Dist. Court for the S.D. of FL., Case No. 1:20-cv-24051-AMC, December 2021.

50. ESI Protocols, Reasonableness of Technology Assisted Review (TAR) and Search Terms, 3rd expert declaration, *In Re Diisocyanates Antitrust Litigation*, MDL 2862, (W.D.Pa.), Master Docket No. 18-1001, December 2021.

51. PDF Signature Authentication, preliminary declaration, *Laba v. JBO Worldwide Supply Pty Ltd.*, US. District Court S. D. N. Y., Case No: 1:20-cv-03443-AKH, December 2021.

52. Forensic Analysis of IP Exfiltration, declaration, *KeyBank National Association v. Williams and Weldon*, U.S. District Court for the District of Colorado, Civil Action No. 1:19-cv-03714-CMA, December 2021.

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53. Data Availability, declaration, *MSP Recovery Claims Series LLC et al. v Integon National Insurance Co., et al.*, U.S. Dist. Court for the S.D. of FL., Case No. 1:20-cv-24051-AMC, November 2021.

54. Data Availability, deposition, *Velez et al., v. Florida Power & Light Company*, Circuit Court of the 11th Circuit in and for Miami-Dade County, Florida, Case No. 2017-CA-022854-CA-01, October 2021.

55. Intellectual Property Forensics Analysis, deposition, *Philips Medical Systems, et al. v TEC Holdings, Inc., et al.*, N.D. Ga., Case 1:17-cv-02864-LLM, September 2021.

56. Audio Records and Ordinary Course of Business, declaration, *Diamond Resorts U.S. Collection Development LLC v. Reed Hein & Associates, LLC d/b/a Timeshare Exit Team, et al.*, U.S. Dist. Court Dist. of Nevada, Case No. 2:17-cv-03007-APG, August 2021.

57. Intellectual Property Forensics Analysis, report, *Philips Medical Systems, et al. v Zimmerman*, W.D. NC, Charlotte Division, Civil No: 3:19-cv-444, August 2021.

58. Intellectual Property Forensics Analysis, report, *Philips Medical Systems, et al. v Dorow and Griswold*, N.D. Ga., Civil No: 19-cv-272, August 2021.

59. Data Matching, deposition, MSPA Claims, *Series, LLC, v. Atlantic Specialty Insurance Company*, M.D. Fla., Case no. 6:20-cv-00553-RBD-EJK, August 2021.

60. Email Authenticity, Expert report, *Jawahar Jain v. Samsung Research America, Inc., et al.*, Superior Court of the Stae of California, County of Santa Clara, Case No. 17-CCV-318162, August 2021.

61. ESI Protocols, Reasonableness of Technology Assisted Review (TAR) and Search Terms, Unsworn Testimony, *In Re Diisocyanates Antitrust Litigation*, MDL 2862, (W.D.Pa.), Master Docket No. 18-1001, July 2021.

62. Data Matching, expert report, *MSPA Claims, Series, LLC et al., v. Plymouth Kingsway Amigo Insurance Co.*, S.D. Fla., Civil Action No. 2016-CV-20212-JLK, June 2021.

63. Data Matching, expert report, *MSPA Claims, Series, LLC et al., v. Plymouth Rock Assurance Corporation, Inc. et al.*, D. Mass., Case no. 1:18-cv-11702-ADB, July 2021.

64. Intellectual Property Forensics Analysis, report, *Philips Medical Systems, et al. v TEC Holdings, Inc., et al.*, N.D. Ga., Case 1:17-cv-02864-LLM, July 2021.

65. Data Matching, affidavit, *MSPA Claims, Series, LLC, v. Atlantic Specialty Insurance Company*, M.D. Fla., Case no. 6:20-cv-00553-RBD-EJK, July 2021.

66. Data Matching, affidavit, *MSPA Claims, Series, LLC, v. United Automobile Insurance Company*, S.D. Fla., Case no. 1:20-cv-20887, June 2021.

67. Data Availability, deposition, *MSP Recovery Claims, Series LLC, et al., v. Markel American Insurance Company*, et al., S.D. Fla., Case no. 1:20-cv-24063, May 2021.

68. Data Availability, expert report, *MSP Recovery Claims, Series LLC, et al., v. Markel American Insurance Company*, et al., S.D. Fla., Case no. 1:20-cv-24063, May 2021.

69. Data Availability, rebuttal report, *MSPA Claims, Series, LLC, v. United Automobile Insurance Company*, S.D. Fla., Case no. 1:20-cv-20887, May 2021.

70. Data Availability, expert report, *MSP Recovery Claims, Series LLC and MSPA Claims 1,*

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LLC, v. American National General Insurance Co, and American National Property & Casualty Co, S.D. Fla., Case no. 1:20-cv-24077, May 2021.

71. Analysis of iPhone, Text Messages, and Fonts, trial testimony, *Rossbach v. Montefiore Medical Center et al.*, (SDNY, 2021), case 1:19-cv-05758 , April 2021.
72. Reasonableness of Technology Assisted Review (TAR) and Search Terms, 2nd expert declaration, *In Re Diisocyanates Antitrust Litigation*, MDL 2862, (W.D.Pa.), Master Docket No. 18-1001, April 2021.
73. Analysis of iPhone, Text Messages, and Fonts, expert report, *Rossbach v. Montefiore Medical Center et al.*, (SDNY, 2021), case 1:19-cv-05758 , April 2021.
74. Reasonableness of Technology Assisted Review (TAR) and Search Terms, 1st expert declaration, *In Re Diisocyanates Antitrust Litigation*, MDL 2862, (W.D.Pa.), Master Docket No. 18-1001, April 2021.
75. Analysis of Document Metadata, expert report, *Grace Instrument Industries v. Chandler Instruments Co.*, S.D. Texas, Houston Division, Civil Action No. 4:20-cv-1749, March 2021.
76. Trademark Specimen Forensic Review, Preliminary Report, BNG MiraclePet, March 2021.
77. Analysis of Computer Logs, expert report, *Center For Workplace Compliance (f/k/a/ Equal Employment Advisory Council) v. Littler Mendelson, P.C. et al.*, E.D.Va., Civil Action No. 1:20-cv-1387, March 2021.
78. Analysis of Google Gmail, report, *Mirata Pharmaceuticals, LLC v. The Administrators of the Tulane Education Fund*, JAMS Ref No. 1425031941, February 2011.
79. Application Data Analysis, trial testimony, *Sinclair v. Wireless Advocates, LLC*, S.D. Fla., Collective Action Complaint, Case no. 0:20-cv-60886, February 2021.
80. Application Data Analysis, deposition, *Sinclair v. Wireless Advocates, LLC*, S.D. Fla., Collective Action Complaint, Case no. 0:20-cv-60886, January 2021.
81. Application Data Analysis, declaration, *Sinclair v. Wireless Advocates, LLC*, S.D. Fla., Collective Action Complaint, Case no. 0:20-cv-60886, January 2021.
82. Data Availability, deposition, *MSPA Claims 1, LLC, v. Covington Specialty Insurance Company*, S.D. Fla., Case no. 1:19-cv-21583, January 2021.
83. Analysis of Metadata, expert declaration, *Purevbat et al. v. Axlehire, Inc., et al.*, Superior Court of the State of California County of Los Angeles, Case No. 19STCV42056, November 2020.
84. Data Availability, rebuttal report, *MSPA Claims 1, LLC, v. Covington Specialty Insurance Company*, S.D. Fla., Case no. 1:19-cv-21583, November 2020.
85. Data Availability, declaration, *MSPA Claims 1, LLC, v. Covington Specialty Insurance Company*, S.D. Fla., Case no. 1:19-cv-21583, October 2020.
86. Data Availability, deposition, *MSPA Claims 1, LLC, v. Tower Hill Prime Insurance Company and Tower Hill Claims Service, LLC*, N.D. Fla., Gainesville Division, Case no. 1:18-cv-00157, June 2020.
87. Data Availability, expert report, *MSPA Claims 1, LLC, v. Tower Hill Prime Insurance Company and Tower Hill Claims Service, LLC*, N.D. Fla., Gainesville Division, Case no.

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1:18-cv-00157, May 2020.

88. Technology Assisted Review (TAR), declaration, *William Morris Endeavor Entertainment LLC, et al., v. Writers Guild of America West, Inc., et al.*, C.D. Ca., Western District, Case no. 2:19-cv-05465-AB (FFMx), April 2020.

89. Data Analysis, declaration, *Fischer v Sentry Insurance*, United States District Court for the Western District of Wisconsin, Case no. 19-cv-156, March 2020.

90. E-Discovery and Document Review, deposition, *Brouwer et al. v. Wyndham Vacation Resorts, Inc., et al.*, Circuit Court of the Ninth Judicial Circuit in and for Orange County, Florida, Case No. 2014-CA-008535, December 2019.

91. Data Availability, deposition, *MSP Recovery Claims, Series LLC v. AIX Specialty Insurance Company*, United States District Court for the Middle District of Florida, Case No. 1:18-cv-01456-PGB-DCI, November 2019.

92. Data Availability, declaration, *MSP Recovery Claims, Series LLC v. AIX Specialty Insurance Company*, United States District Court for the Middle District of Florida, Case No. 1:18-cv-01456-PGB-DCI, September 2019.

93. Non-Public Availability of Data, declaration, *LabMD v Tiversa*, United States District Court for the Western District of Pennsylvania, No. 2:15-cv-00092-MPK, September 2019.

94. PeopleSoft Analysis, deposition, *Lopes v. Kohl's Department Stores, Inc.*, Superior Court for the State of California for the County of Alameda, Lead Case No.: RG08380189, October 2019.

95. Compensation Analysis, deposition, *Lopes v. Kohl's Department Stores, Inc.*, Superior Court for the State of California for the County of Alameda, Lead Case No.: RG08380189, September 2019.

96. Compensation Analysis, declaration, *Lopes v. Kohl's Department Stores, Inc.*, Superior Court for the State of California for the County of Alameda, Lead Case No.: RG08380189, August 2019.

97. Data Availability, rebuttal declaration, *MAO-MSO Recovery II, LLC v. Mercury General*, United States District Court Central District of California, Case No. 2:17-cv-02525, 2:17-cv-02557, June 2019.

98. Compensation Analysis, declaration, *Lopes v. Kohl's Department Stores, Inc.*, Superior Court for the State of California for the County of Alameda, Lead Case No.: RG08380189, August 2019.

99. Data Availability, deposition, *MAO-MSO Recovery II, LLC v. Mercury General*, United States District Court Central District of California, Case No. 2:17-cv-02525, 2:17-cv-02557, June 2019.

100. Data Availability, deposition, *MAO-MSO Recovery II, LLC v. State Farm*, United States District Court for the Central District of Illinois Peoria Division, Case No. 1:17-cv-01537-JBM-JEH, April 2019.

101. Data Availability, declaration, *MAO-MSO Recovery II, LLC v. State Farm*, United States District Court for the Central District of Illinois Peoria Division, Case No. 1:17-cv-01537-

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JBM-JEH, April 2019.

102. Data Availability, deposition, *MAO-MSO Recovery II, LLC v. Mercury General*, United States District Court Central District of California, Case No. 2:17-cv-02525, 2:17-cv-02557, April 2019.
103. Computer Forensics, court testimony, *Securities Exchange Commission v. McGinnis et al.*, US District Court for the District of Vermont, Civil Action No. 5:14-CV-6, March 2019.
104. Computer Software Analysis, mediation testimony, *SelecTransportation Resources LLC v NSEIT (US), Inc.*, District Court of Harris County, Texas, November 2018.
105. Computer Forensics, court testimony, *Securities Exchange Commission v. McGinnis et al.*, US District Court for the District of Vermont, Civil Action No. 5:14-CV-6, November 2018.
106. Computer Forensics, deposition, *Securities Exchange Commission v. McGinnis et al.*, US District Court for the District of Vermont, Civil Action No. 5:14-CV-6, July 2018.
107. Computer Forensics, expert report, *Securities Exchange Commission v. McGinnis et al.*, US District Court for the District of Vermont, Civil Action No. 5:14-CV-6, May 2018.
108. E-Discovery Expert, unsworn testimony, *Wolford and Taylor v Bayer Essure Inc., et al., Commonwealth of Kentucky*, Pike Circuit Court, Division 1, Civil Action No. 16-CI-00907, May 2018.
109. E-Discovery Expert, unsworn testimony, *McLaughlin v. Bayer Essure Inc., et al.*, US District Court for the District of Eastern Pennsylvania, Case No. 2:14-cv-07315, May 2018.
110. Computer Forensics, deposition, *Securities Exchange Commission v. McGinnis et al.*, US District Court for the District of Vermont, Civil Action No. 5:14-CV-6, May 2018.
111. Computer, MS Outlook and MS Word Forensics, deposition, *Squire Patton Boggs (US) LLP v. Republic Services, Inc.*, et al., Court of Common Pleas, Cuyahoga County, Ohio, Case No: CV-16-870257, May 2018.
112. Document Search and Retrieval, testimony, *Klebba et al. v. Wyndham Vacation Resorts, Inc.*, et al., Circuit Court of the Ninth Judicial Circuit in and for Orange County, Florida, Case No. 2014-CA-008535, March 2018.
113. Enterprise Architecture and Information Retrieval, testimony, *Klebba et al. v. Wyndham Vacation Resorts, Inc.*, et al., Circuit Court of the Ninth Judicial Circuit in and for Orange County, Florida, Case No. 2014-CA-008535, December 2017.
114. Computer Forensics, ESI Cost and Burden, testimony, *United States v. David Shulick*, U.S. District Court for the Eastern District of Pennsylvania, Criminal No. 16-428, October 2017.
115. Enterprise Architecture and Information Retrieval, testimony, *Klebba et al. v. Wyndham Vacation Resorts, Inc.*, et al., Circuit Court of the Ninth Judicial Circuit in and for Orange County, Florida, Case No. 2014-CA-008535, September 2017.
116. Computer Forensics, affidavit, *PNC Bank, National Association v. Vander Molen*, US District Court for the Western District of Pennsylvania, Civil Action No. 2:17-CV-00867-CRE, July 2017.
117. Computer Forensics, expert report (supplemental), *Securities Exchange Commission v. McGinnis et al.*, US District Court for the District of Vermont, Civil Action No. 5:14-CV-6,



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July 2017.

118. Compensation Analysis, accounting report, *Lopes v. Kohl's Department Stores, Inc.*, Superior Court for the State of California for the County of Alameda, Lead Case No.: RG08380189, June 2017.

119. Compensation System Applications, deposition, *Eldard, Wall, et al. v. Hewlett-Packard Co., et al.*, Case No. 30-2012-00537897-CU-BT-CXC, Superior Court of the State of California for the County of Orange, May-June 2017.

120. Compensation System Applications, declaration, *Eldard, Wall, et al. v. Hewlett-Packard Co., et al.*, Case No. 30-2012-00537897-CU-BT-CXC, Superior Court of the State of California for the County of Orange, May 2017.

121. Cellphone Forensics, declaration, *Urias et al. v. Lopez et al.*, Cause No. B-140516, District Court of Ector County, Texas, 161st Judicial District, May 2017.

122. Email Forensics, declaration, *Garrubbo v Plainfield Country Club et al*, Docket No. Mid-L-7273-13, Superior Court of New Jersey, Law Division: Middlesex County, March 2017.

123. Email Forensics, declaration, *Kraja v Bellagio, LLC et al*, Case No. 2:15-cv-01983-APG-NJK, US District Court, District of Nevada, February 2017.

124. Electronic Discovery, adequacy of search, declaration, *Immigrant Defense Project v. United States Immigration and Customs Enforcement Agency (ICE) et al.*, Case No. 16 Civ. 387 (KBF), US District Court, Southern District of New York, November 2016.

125. Electronic Discovery, inspection of enterprise systems, *Arine vs. Aaroma Holdings, LLC*, Docket No. MID-L-7291-11, Superior Court of New Jersey, Law Division, Middlesex County, October 2016.

126. Electronic Discovery, adequacy of search, declaration, *National Day Laborer Organizing Network (NDLON) et al v. United States Immigration and Customs Enforcement Agency (ICE) et al.*, Case No. 16 Civ. 387 (KBF), US District Court, Southern District of New York, October 2016.

127. Software Code Analysis, trial testimony, *HESC v. Valtech Technologies, Inc. et al.*, 68th District Court, Dallas County, Docket # DC-13-065947-C, October 2016.

128. Software Code Analysis, deposition, *HESC v. Valtech Technologies, Inc. et al.*, 68th District Court, Dallas County, Docket # DC-13-065947-C, August 2016.

129. Compensation Analysis, accounting report, *Lopes v. Kohl's Department Stores, Inc.*, Superior Court for the State of California for the County of Alameda, Lead Case No.: RG08380189, August 2016.

130. Forensic Data Recovery, affidavit, *Arine v. AAroma Holdings, LLC et al.*, Superior Court of New Jersey Law Division: Middlesex County, Docket No. MID-L-7291-11, June 2016.

131. Software Code Analysis, expert report, *HESC v. Valtech Technologies, Inc. et al.*, 68th District Court, Dallas County, Docket # DC-13-065947-C, June 2016.

132. Application Forensics, deposition, *ARKO Plumbing Corp. v. Rudd et al.*, Circuit Court of the 11th Judicial Circuit in and for Miami-Dade County, FL, Case No.: 13-019894-CA-06, May 2016.

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133. Computer, MS Outlook and MS Word Forensics, report, *Luri v Republic Services, Inc. et al.*, Court of Common Pleas, Cuyahoga County, Ohio, Case No: CV 07-633043, April 2016.

134. Application Forensics, declaration, *ARKO Plumbing Corp. v. Rudd et al.*, Circuit Court of the 11th Judicial Circuit in and for Miami-Dade County, FL, Case No.: 13-019894-CA-06, April 2016.

135. Email and Internet Forensics, affidavit, *Bowman v. Infrahealth Enterprises, LLC, et al.*, District Court of Travis County, Texas, 261st Judicial District, Cause No. D-1-GN-14-001548, February 2016.

136. Structured Data Acquisition and Production, unsworn testimony, *In Re Blue Cross Blue Shield Antitrust Litigation*, U.S. District Court, Northern District of Alabama, No. 13-20000, January 2016.

137. Database Forensics, Computer Forensics, declaration in support of fee application, *Klipsch Group, Inc., v. Big Box Limited et al.*, US District Court, Southern District of New York, Case No. 12-CIV-6283 (VSB) (MHD), January 2016.

138. Computer Forensics, deposition, *Securities Exchange Commission v. McGinnis et al.*, US District Court for the District of Vermont, Civil Action No. 5:14-CV-6, December 2015.

139. Compensation Analysis, accounting report, *Lopes v. Kohl's Department Stores, Inc.*, Superior Court for the State of California for the County of Alameda, Lead Case No.: RG08380189, December 2015.

140. Compensation Analysis, accounting report, *Lopes v. Kohl's Department Stores, Inc.*, Superior Court for the State of California for the County of Alameda, Lead Case No.: RG08380189, October 2015.

141. ESI Best Practices, deposition, *LaBarre et al. v. Occidental Chemical Company, et al.*, Twenty-Third Judicial Dist. Court, Parish of Assumption, State of Louisiana, Docket no. 33796, October 2015.

142. Compensation Analysis, interim report, *Lopes v. Kohl's Department Stores, Inc.*, Superior Court for the State of California for the County of Alameda, Lead Case No.: RG08380189, October 2015.

143. Computer Forensics, expert report (supplemental), *Securities Exchange Commission v. McGinnis et al.*, US District Court for the District of Vermont, Civil Action No. 5:14-CV-6, October 2015.

144. Relative Accessibility of ESI, affidavit, *Wal-Mart Stores, Inc., v. Cuker Interactive, LLC*, Western District of Arkansas, C.A. No. 5:14-cv-5262, September 2015.

145. Computer Forensics, Time Stamps, expert affidavit, *Pursuit Partners, LLC v. UBS et al.*, Superior Court at Waterbury, Docket No. UWY-X10-CV-08-403318-S, August 2015.

146. PeopleSoft and Kronos, evidentiary hearing testimony, *Lopes v. Kohl's Department Stores, Inc.*, Superior Court for the State of California for the County of Alameda, Lead Case No.: RG08380189, August 2015.

147. Application Forensics, declaration, *ARKO Plumbing Corp. v. Rudd et al.*, Circuit Court of the 11th Judicial Circuit in and for Miami-Dade County, FL, Case No.: 13-019894-CA-06, June 2015.

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148. Structured Data, expert report, *Myers v. Wal-Mart Stores, Inc., et al.*, Southern District of Mississippi, Civil Action No.: 1:14CV264-HSO-RHW, June 2015.

149. Software Code Analysis, expert disclosure, *HESC v. Valtech Technologies, Inc. et al.*, 68th District Court, Dallas County, Docket # DC-13-065947-C, June 2015.

150. Computer Forensics, expert report, *Indiana Electrical Workers Pension Trust Fund IBEW v. Wal-Mart Stores, Inc.*, Court of Chancery, State of Delaware, Case No. 7779-CB, February 2015.

151. Database Forensics, Computer Forensics, declaration, *Klipsch Group, Inc., v. Big Box Limited et al*, US District Court, Southern District of New York, Case No. 12-CIV-6283 (VSB) (MHD), February 2015.

152. Format of Production, affidavit, *Zaremba v. Biomet et al.*, Circuit Court of the Twelfth Judicial Circuit, Sarasota County, Florida, Case No. 2014-CA-01932-NC, January 2015.

SELECT SPEAKING ENGAGEMENTS AND CONFERENCES (Past 5 Years)

1. Corporate Legal Operations Consortium (CLOC), attendee, Las Vegas, May 2025.
2. International Association of Defense Counsel (IADC) Corporate Counsel College (CCC), speaker, *Deepfake Technology and Threats to the Authenticity of Evidence,* Chicago, April 2025.
3. LFT Fiber Powered by Connectivity Summit, keynote speaker, *Developing and Implementing Case and Matter Strategies that Leverage Technology in Litigation and Investigations,* Lafayette, LA, April 2025.
4. ACAN 20th Anniversary Conference, Washington DC, March 2025.
5. University of Florida Levin College of Law 11th Annual Conference Board, advisory board member, speaker, *Deepfakes, Shallow Fakes and the Liar's Dividend (Ethics),* Gainesville, Florida, February 2025.
6. Global Class Actions Symposium, speaker, *The Use of Data in Negotiations,* Lisbon Portugal, November 2024
7. WorldCC Annual Conference, keynote speaker, *Fake Evidence in Contract Negotiations,* Atlanta, Georgia, October 2024.
8. The Sedona Conference, WG1, speaker, *Commentary on the Internet of Things,* Phoenix, Arizona, October 2024.
9. The International Data Law Forum, speaker, *Mobile Forensics,* The Hague, Netherlands, July 2024.
10. St. Mary's Law School, e-Discovery guest speaker, San Antonio, Texas, May 2024
11. University of Texas Law School, e-Discovery guest speaker, *Data, Law, and Justice,* March 2024.
12. Academy of Court Appointed Neutrals (ACAN), annual conference, member and attendee, Ft. Lauderdale, FL, March 2024.
13. Storage Technology Showcase, attendee, Norfolk, VA, March 2024.
14. University of Florida Levin College of Law 11th Annual Conference Board, advisory

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board member, speaker, *Mobile Forensics,* Gainesville, Florida, February 2024.

15. Duquesne Kline School of Law, e-Discovery guest speaker, *Big Data and the Law,* Pittsburgh, PA, February 2024.
16. Sedona Conference Working Group 6 (WG6), *International Disclosure, Discovery and Privacy,* attendee, Brussels, Belgium, January 2024.
17. International High-Tech Computer Investigators Association (HTCIA), speaker, *Mock Trial, Expert Witnesses,* Phoenix, Arizona, September 2023.
18. The ABA Cross-Border Institute, advisory board member, Paris, France, July 2023.
19. International Association of Judges, panelist, *Technology and Access to Justice in the Modern Courtroom,* Washington, D.C., May 2023.
20. Temple Law School, guest lecturer, *Data and Where It Lives,* Philadelphia, PA., February 2023.
21. University of Florida Levin College of Law 10th Annual Conference Board, speaker, *Integrating Data,* Gainesville, Florida, February 2023.
22. Sedona Conference, Mid-year Meeting, WG6, London, UK, January 2023.
23. Georgetown Advanced E-Discovery Institute, Annual Conference, advisory board, attendee, Washington, D.C., November 2022.
24. Today's General Counsel, webinar, *Fact Crashing™,* October 2022.
25. Sedona Conference, Annual Meeting, WG1, Philadelphia, PA, October 2022.
26. Electronic Discovery Institute, attendee, Leadership Conference, Miami, Florida, October 2022.
27. The ABA Cross-Border Institute, director and panelist, *Cross-Border E-Discovery,* Amsterdam, The Netherlands, July 2022.
28. The Commerce Club - Atlanta, CLE Presentation, *Structured Data and Fact Crashing™,* Atlanta, GA, April 2022.
29. University of Florida Levin School of Law, 9th Annual E-Discovery Conference, *Structured Data and the Internet of Things,* Tampa Bay, FL, March 2022.
30. University Club of Orlando, CLE Presentation, *Structured Data and Fact Crashing™,* Orlando, FL, March 2022.
31. University of Florida Levin College of Law 9th Annual Conference Board, remote speaker, *How to be an Effective On-Line Speaker: PowerPoint and Zoom tips,* Tampa Bay, Florida, January 2022.
32. Georgetown Global Advanced E-Discovery Institute, Annual Conference, advisory board, speaker: *Social Justice and E-Discovery,* Washington, D.C., November 2021.
33. eDiscovery Leaders Live, George Socha and Dan Regard, podcast, November 2021.
34. Sedona Conference, Annual Meeting, WG1, Database Discovery, panelist, Cleveland, OH, October 2021.
35. Electronic Discovery Institute, attendee, Leadership Conference, Santa Barbara, California, October 2021.
36. University of Florida Levin College of Law, guest lecturer, *Search Terms and*

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Technology Assisted Review, Tampa Bay, Florida, October 2021.

37. William & Mary Law School, guest lecturer, *Introduction of Computers and Big Data for Lawyers,* Williamsburg, VA, September 2021.
38. Chats with Tom and Rachi, CEO Dan Regard, podcast, May 2021.
39. Temple Law School, guest lecturer, *Computers for Lawyers,* Philadelphia, PA., April 2021.
40. University of Florida Levin School of Law, *Media, Technology, and Law, Surveillance Capitalism,* Tampa Bay, FL, March 2021.
41. University of Florida Levin School of Law, E-Discovery Conference, *Short Messages,* Tampa Bay, FL, March 2021.
42. University of Florida Levin School of Law, guest lecturer, *The Future of Litigation,* Tampa Bay, FL, March 2021.
43. Motivational speaker, How to Moderate a Remote Panel, University of Florida, Pottstown, PA, February 2021.
44. Clear Law Institute, webinar, *Ready to Remain Remote? Legal, Technical and Cyber Concerns for a Remote Workforce,* speaker, Pottstown, PA, February 2021.
45. Georgetown Global Advanced E-Discovery Institute, Annual Conference, advisory board, speaker, Washington, D.C., November 2020.
46. Lean Discovery, *Data as a Digital Witness,* podcast, September, 2020.
47. iDiscovery Solutions, webinar, *Fact Crashing™ Roadshow,* speaker, Pottstown, PA, August 2020.
48. Clear Law Institute, webinar, *Best Practices for Conducting Remote Depositions,* speaker, Pottstown, PA, August 2020.
49. CCBJ Perspectives Podcast, webinar, *Fact Crashing™,* Pottstown, PA, September 2020.
50. The Sedona Conference, webinar, Virtual Town Hall: *Conducting eDiscovery in Disputes involving Artificial Intelligence,* speaker, Pottstown, PA, July 2020.
51. Baker Donelson CEO Podcast, *Sitting with the C-Suite,* interviewee, Pottstown, PA, June 2020.
52. Nextpoint, webinar, *Best Practices for Remote Depositions,* speaker, Pottstown, PA, June 2020.
53. CCBJ Perspectives Podcast, interview, *The Impact of Big Data in Litigation,* Pottstown, PA, June 2020.
54. The Masters Conference, webinar, *Best Practices for Remote Depositions,* speaker, Pottstown, PA, April 2020.

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PROFESSIONAL AFFILIATIONS

- Louisiana Bar Association
- American Bar Association
- International Bar Association
- Sedona Conference Working Group 1 on Electronic Document Retention and Production
- Sedona Conference Working Group 6 on International Electronic Information Management, Discovery and Disclosure
- Georgetown Advanced Institute for e-Discovery, Director
- George Washington Law School, Discovery Proportionality Steering Committee
- Electronic Discovery Institute (EDI)
- University of Florida, e-Discovery Conference, Steering Committee
- ABA Cross-Border Institute, Steering Committee

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